

Ved Prakash v. State of U.P. — second writ against recovery citation dismissed after Clause 7.10 Ombudsman direction

High Court of Judicature at Allahabad · Division Bench · 21 November 2014 · Writ-C No. 62485 of 2014 · Writ-C No. 62485 of 2014 · **Writ petition dismissed.**

HEADNOTE

A second writ for the same cause of action is not maintainable after the consumer has already been directed to approach the Ombudsman under Clause 7.10 of the Electricity Supply Code, 2005. A recovery citation issued pursuant to an assessment order discloses no error. The petition was dismissed.

FACTUAL SUMMARY

Ved Prakash, a proprietor, filed this second writ petition in the Allahabad High Court against a recovery citation issued by the electricity authorities. On 10 September 2014 the Court had already directed him to approach the Ombudsman under Clause 7.10 of the Electricity Supply Code, 2005, for the same cause of action. Despite that direction he returned to the writ court, challenging the recovery citation that had been issued pursuant to the assessment order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

ombudsman-forum-second-writ

HOLDING

Where the High Court has already directed the consumer to approach the Ombudsman under Clause 7.10 of the Electricity Supply Code, 2005, a second writ petition for the same cause of action challenging a recovery citation issued pursuant to the assessment order is not maintainable; the citation discloses no error. ¶ 1